

Maidenhead.com

Business Data Processing & Partner Data Responsibility Agreement

Effective Date: [Insert Date]

Legal Entity: The Maidenhead Partnership Group | Company Number: [COMPANY NUMBER] |

Registered Office: [REGISTERED OFFICE ADDRESS]

Maidenhead.com and The Maidenhead App

For the purposes of these Terms, references to “Maidenhead.com” or the “Platform” mean the Maidenhead.com website, The Maidenhead App and the related digital services operated by The Maidenhead Partnership Group, unless the context specifically refers to the website or app separately.

1. Purpose of This Agreement

This Data Processing & Partner Data Responsibility Agreement (“Agreement”) sets out the responsibilities of:

Maidenhead.com (“Maidenhead.com”, “we”, “us”, “our”)

and

The Business Partner (“Business”, “you”, “your”)

regarding the collection, submission, processing, storage and publication of information provided through the Maidenhead.com platform, that includes www.maidenhead.com and The Maidenhead App.

This Agreement forms part of the Maidenhead.com Business Terms and Conditions.

2. Scope of This Agreement

This Agreement applies where a Business:

- Creates a business profile;
- Purchases a membership subscription;
- Uploads business information;
- Submits advertising material;
- Publishes articles or promotions;
- Adds events;
- Provides contact details;
- Uploads images or media;
- Uses any Maidenhead.com business service.

3. Definitions

Personal Data

Any information relating to an identifiable individual, including:

- Name;
- Email address;
- Telephone number;

- Personal identifiers;
- Images containing identifiable people;
- Employee or representative details.

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Business Content

Any information submitted by the Business including:

- Business descriptions;
- Logos;
- Images;
- Videos;
- Articles;
- Offers;
- Events;
- Contact information;
- Advertising materials.

Data Protection Laws

Includes applicable UK data protection legislation, including:

- UK GDPR;
- Data Protection Act 2018;
- Any replacement or amended legislation.

4. Business Responsibility for Data Submitted

The Business acknowledges that it is solely responsible for ensuring that any information submitted to Maidenhead.com has been:

- Collected lawfully;
- Obtained fairly;
- Provided with appropriate permission;
- Submitted for a legitimate purpose.

The Business must not upload information where it does not have the necessary authority or consent.

5. Business Data Responsibilities

The Business confirms that it will:

5.1 Obtain Appropriate Permissions

Before submitting any personal information, the Business must ensure it has appropriate permission from the relevant individual.

Examples include:

- Employee contact details;
- Staff photographs;
- Customer testimonials;
- Team profiles;
- Personal contact information.

5.2 Provide Accurate Information

The Business must ensure submitted information is:

- Accurate;
- Current;
- Not misleading;
- Updated when necessary.

5.3 Respect Individual Rights

The Business remains responsible for responding to requests from individuals regarding personal information it has provided.

This includes requests relating to:

- Correction;
- Removal;
- Access;
- Objections.

6. Maidenhead.com Role

Maidenhead.com provides a digital platform, across web and app, for businesses to promote themselves and communicate information to users.

Depending on the activity undertaken, Maidenhead.com may act as:

- A Data Controller for information it collects directly from users;
- A Data Processor or service provider for certain information submitted by businesses;
- A Data Controller for publicly displayed business directory information.

The exact role depends on the nature and purpose of the processing activity.

7. Publication of Business Information

The Business acknowledges that information submitted for public listing may be displayed to users.

This may include:

- Business name;
- Address;
- Telephone number;
- Website;
- Opening hours;
- Images;
- Business descriptions;
- Promotional content;
- Social media links.

The Business confirms that it has authority to publish such information.

8. Images and Photographs

The Business confirms that it has obtained all necessary permissions before submitting images.

This includes images containing:

- Employees;
- Customers;
- Members of the public;
- Children;
- Event attendees.

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The Business is responsible for ensuring appropriate consent has been obtained where required.

9. Customer Data and Leads

Where users contact businesses through Maidenhead.com:

The Business acknowledges that it becomes responsible for any personal data received.

Examples include:

- Customer enquiries;
- Booking requests;
- Contact forms;
- Email addresses;
- Telephone numbers.

The Business must handle such information in accordance with applicable data protection laws.

Maidenhead.com is not responsible for how a Business subsequently uses customer information received.

10. Marketing Communications

Where businesses use Maidenhead.com promotional services including:

- Newsletter features;
- Push notifications;
- Promotional campaigns;

the Business confirms that all promotional material supplied:

- Is accurate;
- Complies with advertising laws;
- Does not contain misleading claims;
- Has appropriate permissions for any personal data included.

11. Prohibited Data Uploads

Businesses must not submit:

- Sensitive personal information without lawful basis;
- Medical information;
- Financial information;
- Private customer data;
- Confidential information;
- Personal information belonging to individuals without permission.

12. Security Responsibilities

Maidenhead.com will take reasonable steps to protect information held within its systems.

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However, the Business acknowledges that:

- No online platform can guarantee complete security;
- Internet transmission carries risks;
- Businesses remain responsible for information they submit.

13. Data Breaches

Where a Business becomes aware of:

- Unauthorised access;
- Incorrect publication;
- Misuse of submitted information;

it must notify Maidenhead.com promptly.

Where appropriate, Maidenhead.com will investigate and take reasonable action.

14. Removal Requests

Maidenhead.com may remove or amend information where:

- Required by law;
- Requested by an authorised person;
- Information breaches policies;
- Publication creates risk;
- Information is inaccurate.

Removal does not create entitlement to compensation or refunds.

15. Business Indemnity

The Business agrees to indemnify and protect Maidenhead.com against claims, losses, damages or expenses arising from:

- Information submitted by the Business;
- Unauthorised use of personal data;
- Copyright or privacy breaches;
- Incorrect permissions;
- Breaches of data protection law.

16. Third-Party Links and Services

Businesses may provide links to:

- Websites;
- Booking platforms;
- Social media;
- External services.

The Business remains responsible for:

- The information contained on those platforms;
- Their privacy practices;
- Their compliance with applicable laws.

Maidenhead.com accepts no responsibility for third-party services.

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17. Data Retention

Maidenhead.com may retain business information for as long as reasonably necessary for:

- Providing services;
- Maintaining records;
- Legal compliance;
- Resolving disputes.

18. Termination of Services

When a Business account ends:

Maidenhead.com may:

- Remove paid promotional content;
- Retain basic business information where appropriate;
- Delete information according to retention requirements.

19. Changes to This Agreement

Maidenhead.com may update this Agreement from time to time.

Businesses will be bound by the latest published version.

20. Governing Law

This Agreement is governed by the laws of England and Wales.

Any disputes shall be subject to the exclusive jurisdiction of the courts of England and Wales.